

FLORES VS. TAGGART

Case Number: 24CV-0204651

Tentative Ruling on Order to Show Cause Re: Dismissal: An Order to Show Cause Re: Dismissal issued on January 2, 2025 for failure to timely serve pleadings on Defendant pursuant to California Rules of Court, Rule 3.110(b) and failure to timely prosecute. The Court notes that Plaintiff filed a Notice of Appeal for a judgment entered on February 25, 2025. Although February 25, 2025 is in the future, the Court will continue the matter in an abundance of caution while the Court waits for a response from the Court of Appeal. The matter is continued to **Tuesday, April 1, 2025 at 8:30 a.m. in Department 63** for hearing on the Order to Show Cause Re: Dismissal.

MANGELS VS. RANDELL, ET AL.

Case Number: 23CV-0203674

Tentative Ruling on Motion for Summary Judgment and/or Summary Adjudication: Defendants Frank Randell and Kathleen Randell move for summary judgment or in the alternative, summary adjudication, on the Complaint filed by Plaintiff Gary Mangels on November 16, 2023. The Complaint contains two causes of action: 1. Specific Performance of Real Estate Contract and 2. Declaratory Relief. The motion is opposed by Plaintiff Gary Mangels.

The Court notes Defendants' objection to Plaintiff's Opposition filed on January 16, 2025, on the basis that it was untimely filed. An Amendment to CCP § 473c went into effect on January 1, 2025. "An opposition to the motion shall be served and filed not less than 20 days preceding the noticed or continued date of hearing, unless the court for good cause orders otherwise." CCP § 437c(b)(2). Defendants did not articulate any prejudice caused by the two-day delay and the Court does not find any prejudice. Based on the amendment to CCP § 473c being very recent, the Court finds good cause to consider the opposition and will overrule the objection.

However, there is a deficiency with the evidence presented by Plaintiff. The Court notes that Plaintiff submitted two declarations in support of the Opposition: the Declaration of Jacob Wright and the Declaration of Gary Mangels. Both declarations do not comply with CCP § 2015.5 as they do not contain the statement, "I certify (or declare) under penalty of perjury that the foregoing is true and correct." A declaration that does not comply with CCP § 2015.5 is not sufficiently reliable to be admitted into evidence. *ViaView, Inc. v. Retzlaff* (2016) 1 Cal. App. 5th 198, 217.

The issue was not raised in the Reply and no objection was made by Defendants on the basis that Plaintiff and his counsel did not sign their declarations under penalty of perjury. As it appears that this issue can be easily remedied, the Court continues hearing on the motion to **Tuesday, February 18, 2025 at 8:30 a.m. in Department 63**. Should Plaintiff be able to provide verifications to the declarations, they must be filed no later than Friday, February 7, 2025. The Court will not allow any new facts or substantive changes to the declarations.

The Court notes that Defendants will likely object to the Court's intended course of action. The Court has considered the rights of both parties and concludes that it would be fundamentally unfair to not consider evidence in a dispositive motion for what appears to be a typographical or otherwise inadvertent error by counsel. The Court further notes that were the Court to exclude all of the evidence offered by Plaintiff based on the lack of verification, that a motion pursuant to CCP § 473(b) could be brought following the ruling. This would likely increase attorney fees for both parties and cause a delay of the March 18, 2025, trial date. The Court finds that providing Plaintiff the opportunity to correct the defect is in the interest of judicial economy, promotes the preference for judgments on the merits, and operates to the ultimate benefit of both parties.

An appearance is requested on today's calendar. The Court notes that the matter is scheduled for a Mandatory Settlement Conference at 1:30 p.m. today and the Court intends to discuss whether the Mandatory Settlement Conference will be going forward.